



POLICE DEPARTMENT

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Lateef Stinson :

Tax Registry No. 964300 :

67 Precinct :

Case No.

C-031595

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Peter Brill, Esq.
Brill Legal Group, P.C.
176 Lexington Avenue, Suite O
New York, NY 10016

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Lateef Stinson, on or about July 25, 2023, while on duty and assigned to the 41 Precinct, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department when said Officer was discourteous and unprofessional when speaking in front of Deputy Inspector Anthony Mascia by stating in sum and substance: "bad leadership/supervision here," "a lot of little dick energy," and then threatening to punch other members of the service.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Police Officer Lateef Stinson, on or about July 10, 2023, while on duty and assigned to the 41 Precinct, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department when said Officer was discourteous and unprofessional when referring to Sergeant Alvarado by stating in sum and substance: "we got some clowns in here" and "he's a clown." (*As added*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Police Officer Lateef Stinson, on or about Sunday, June 11, 2023, at approximately 0900 hours, reported one hour late to the muster location for the Puerto Rican Day Parade Detail. (*As added*)

P.G. 202-01, Paragraph 3

POLICE OFFICER—
DUTIES AND RESPONSIBILITIES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 6, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to Specifications 1 and 2, and pled Guilty to Specification 3. The Department called Inspector Anthony Mascia, Sergeant Ostende Alvarado, and Police Officer Lionel Perales as witnesses. They also entered the audio recording and transcript of Police Officer Jose Pachot's Department interview into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I recommend the forfeiture of thirty (30) suspension days, already served, the restoration

of four (4) suspension days previously served,¹ and further recommend that Respondent be placed on one-year dismissal probation for Specifications 1 and 2, to run concurrently with forfeiture of one (1) suspension day for Specification 3, as discussed below.

ANALYSIS

These charges stem from an allegation that Respondent, while assigned to the 41st Precinct, was discourteous to two supervisors on two different dates in July 2023. In addition, Respondent pled guilty to arriving late to his assigned muster location for a detail in June 2023. The following is a summary of undisputed facts.

On June 11, 2023, Respondent and Police Officer Jose Pachot², arrived one hour late to the Puerto Rican Day Parade Detail. As a result, they were each issued a Schedule "A" Command Discipline, which was to be adjudicated at a later date by the 41st Precinct Integrity Control Officer ("ICO"). (Tr. 20, 63-65, 84-86)

Before going out on patrol on July 10, 2023, Respondent was at the 41st Precinct desk signing out a Taser from Sergeant William Rabadi. Sergeant Ostende Alvarado was also behind the desk, off to the side, looking at his Department phone. Although Respondent denies responsibility, the parties agree that someone stated, in sum and substance, "We got some clowns in here," "He's a clown," and that Sergeant Alvarado believed the comments were referring to him. (Tr. 44-47, 89-93)

The Puerto Rican Day Parade Command Discipline was scheduled to be adjudicated in the ICO's office at approximately 1530 hours on July 25, 2023. Respondent and Police Officer Pachot were waiting outside of the ICO's office with their Police Benevolent Association ("PBA") delegate, Police Officer Lionel Perales. As they waited to meet with the ICO, the three

¹ As a result of this incident, Respondent was suspended without pay from July 25, 2023, through August 27, 2023.

² Police Officer Pachot retired from the NYPD on July 31, 2024.

were discussing the Command Discipline, specifically the proposed penalty and the officer's option to decline it. While this conversation was happening, Inspector Anthony Mascia,³ the Commanding Officer of the 41st Precinct, walked by the group on his way to the Detective Squad. A few minutes later, as he left the squad, he passed the group again. At the same time, Respondent was exclaiming, in sum and substance, "[There is] bad leadership and supervision here," "a lot of little dick energy," and "This is why people get punched in the face." No other supervisors or police officers were present in the hallway during this incident. (Tr. 22-32, 65-73, 93-97; Dept Ex. 1A at 8-10)

Sergeant Ostende Alvarado took the stand and testified that after roll call on July 10, 2023, he was behind the desk in the 41st Precinct checking radio runs and other "jobs" on his Department-issued cell phone. He remembered being approximately five feet away from Sergeant Rabadi, who was signing out Tasers to the day tour patrol officers, including Respondent. Sergeant Alvarado recalled hearing Respondent say, "There's a bunch of clowns in here." According to Sergeant Alvarado, Sergeant Rabadi asked Respondent who he was talking about and Respondent answered, "that guy right there," while gesturing in Sergeant Alvarado's direction. Sergeant Alvarado admitted that he was not facing Respondent when this happened and that he saw Respondent lowering his hand out of the "corner of his eye." He described looking first at Respondent, then at Sergeant Rabadi who told him, "He's talking about you." (Tr. 45-47, 50)

Sergeant Alvarado acknowledged that he did not immediately confront Respondent about the incident because he did not want to cause a commotion. He also testified that as a relatively new supervisor, he was unsure what to do. Sergeant Alvarado then consulted with the ICO and

³ Inspector Mascia was a Deputy Inspector on the date of this incident.

Commanding Officer to determine what disciplinary action would be taken against Respondent. When asked about his relationship with Respondent, Sergeant Alvarado admitted that prior to this incident, Respondent had complained about frequently being assigned to a hospital post. Sergeant Alvarado recalled that because of Respondent's "combative" demeanor, he asked the PBA delegate and another sergeant to witness the conversation. (Tr. 47-51)

Inspector Anthony Mascia took the stand and testified that, shortly after July 10, 2023, he spoke with Sergeant Alvarado about the "clown" incident involving Respondent. Regarding July 25, 2023, he remembered seeing Respondent, along with Police Officers Pachot and Perales, standing in the hallway outside of the ICO's office as he walked toward the Detective Squad. After finishing his business in the Squad, Inspector Mascia described walking back towards the group. As he passed, he recounted hearing Respondent saying something about poor leadership in the precinct— "a lot of little dick energy and I'm going to start punching people in the face." Inspector Mascia described the volume of Respondent's voice as "louder than a conversational tone." He also stated that he was the sole supervisor in the vicinity, and, in total, only the four of them were in the hallway. (Tr. 22-26, 30-32)

Inspector Mascia explained that while it is normal for officers to complain about work, this incident stood out to him because of Respondent's reference to physical violence. He expounded, "That's [someone] acting out of frustration. That's different than a statement of being unhappy with their current working conditions. It's a statement regarding how they would treat somebody else." (Tr. 27) Inspector Mascia testified that after he heard these statements, he went to his office to "gather" himself and decide what course of action to take. He then brought Respondent and Police Officer Perales into the ICO's office and suspended Respondent. When asked why he took such drastic measures, Inspector Mascia replied, "I didn't feel comfortable

with [Respondent] going back out on patrol as a member of the Police Department with a firearm.” (Tr. 25-26)

Police Officer Lionel Perales took the stand and recounted standing with Respondent and Police Officer Pachot in the hallway directly across from the ICO’s office waiting to adjudicate the Command Discipline. He explained that there is a staircase to the right of the ICO’s office with a small storage room in between. Police Officer Perales recalled Respondent was standing next to him on the right and that Police Officer Pachot was across the hall from them. Police Officer Perales described Respondent as “frustrated” about the Command Discipline. He remembered that as Inspector Mascia passed by going to the Detective Squad, Respondent raised his voice and stated, “These supervisors got small dick energy. They need to be punched in the face.” (Tr. 66-68, 73)

Police Officer Perales contended that he gestured with his hands, signaling to Respondent to calm down and stop talking. He alleged that as soon as Inspector Mascia entered the Detective Squad, Respondent lowered his voice and the discussion about the Command Discipline resumed. Police Officer Perales explained that when Inspector Mascia exited the Detective Squad and walked past the group for the second time, Respondent raised his voice and made the same remarks again. He stated that a short time later, Inspector Mascia returned and suspended Respondent. (Tr. 65-69)

Police Officer Jose Pachot did not appear before the tribunal. The Department introduced into evidence the audio recording and transcript of his July 25, 2023, Department interview. Police Officer Pachot remembered Respondent making comments about the lack of supervision in the command to the effect of, “little dick status,” and “something about, you know, if I start punching people,” as they were standing outside of the ICO’s office with Police Officer Perales.

At first, Police Officer Pachot contended that no one else was present in the hallway when this happened. However, he later clarified that Inspector Mascia was walking by when an “aggravated, frustrated” Respondent made the statements. Police Officer Pachot opined that although Respondent was speaking in a “raised” voice, he did not believe a person walking by could have heard what he said. (Dept. Ex. 1 A at 8-10)

Respondent testified that on June 11, 2023, he was assigned to the Puerto Rican Day Parade detail in Manhattan and that at the last minute, Police Officer Pachot was also instructed to attend. Respondent recounted that he and Police Officer Pachot spent a few minutes trying to arrange transportation, eventually opting to take the train. He recalled arriving at the detail “a little before 9-ish.” According to Respondent, after the muster was concluded, a supervisor approached them, inquiring why they had arrived late. Respondent recounted that two weeks later, the ICO informed the officers that a Command Discipline had been issued to each of them for being tardy. (Tr. 84-86)

Respondent remembered having a conversation with Sergeant Rabadi as he was signing a Taser out after roll call on July 10, 2023. He described Sergeant Rabadi as one of the “coolest” sergeants in the command and explained that they had a good rapport, often telling each other jokes. Respondent also recalled seeing Sergeant Alvarado, who was behind the desk. He acknowledged that prior to the date in question, Sergeant Alvarado had repeatedly assigned him to a hospital post, which, in his opinion, limited his ability to do police work. Respondent contended that when he complained about it, Sergeant Alvarado responded that he had done so because “The cops out here, they don't like working with you.” In spite of this, Respondent denied referring to Sergeant Alvarado as a “clown” as he stood at the desk. Respondent

speculated that if he were to say something about clowns, he would have been speaking generally, not targeting a specific person. (Tr. 88-92)

Respondent testified that on July 25, 2023, he waited to adjudicate the Command Discipline with Police Officers Pachot and Police Officer Perales outside of the ICO's office. He described Police Officer Pachot standing with his back against the wall near the ICO's office, while he and Police Officer Perales stood on the opposite side of the hallway. Respondent explained that his back was facing the door to the Detective Squad. He admitted that he raised his voice and began "venting" about "everything, the CO, my personal issues," as well as the Command Discipline. Respondent acknowledged that in the midst of this rant, he stated, "There's a lot of little dick energy," complained of bad supervision and leadership in the precinct and said, "This is why people get punched in the face." However, he maintained that the comments were not directed at anyone in particular. (Tr. 93-94, 96-97, 118, 121, 123)

Respondent alleged that he was not present when Inspector Mascia walked by the group the first time and did not notice he had exited the Detective Squad until he was in the middle of the three officers. Respondent conceded that he did not change the topic of conversation or the volume of his voice in response to the presence of Inspector Mascia. According to Respondent, he did not see either of the other officers signaling to him that Inspector Mascia was nearby or indicating in any way that he should stop speaking. When asked to clarify, Respondent claimed he did stop speaking once he saw Inspector Mascia and that Police Officer Perales motioned to him, but only after the Commanding Officer was out of view. Respondent recounted that a few minutes later, Inspector Mascia returned, told him that he was suspended, and directed Respondent into the ICO's office. He then ordered Respondent to turn over his shield and NYPD identification card. (Tr. 97-98, 121, 129)

Specifications 1 and 2: Discourtesy to a Supervisor

Administrative Guide 304-06 prohibits members of the NYPD from “engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department.” In the instant matter, Respondent is charged with violating that procedure by being discourteous to Sergeant Alvarado when he purportedly stated, “We got some clowns in here...He’s a clown,” while gesturing in his direction. Two weeks later, Respondent is alleged to have been discourteous again— this time, by loudly complaining, as his commanding officer, Inspector Mascia, walked by, that poor supervision and “little dick energy” in the Precinct are reasons for people to get punched in the face.

July 10, 2023

Sergeant Alvarado took the stand and gave a measured and logical version of events, and I credit his testimony. He described his attention being caught when he heard Respondent say, “We’ve got some clowns in here.” Sergeant Alvarado acknowledged that he only fully engaged with the situation when he heard Respondent telling Sergeant Rabadi, “that guy over there,” in response to Sergeant Rabadi asking who Respondent was talking about. He saw, out of the corner of his eye, Respondent gesturing in his direction and recalled being told by Sergeant Rabadi that Respondent was referring to him.

Respondent, on the other hand, gave an illogical, self-serving version of events. He unequivocally denied making any version of the “clown” statements, whether directed at Sergeant Alvarado or not. However, his memory of who was at the desk, where they were standing, and what they were doing was unusually detailed for a routine day when nothing of note occurred. Respondent admitted that he had previously confronted Sergeant Alvarado for giving him “unwanted” assignments and that on the date of this occurrence, he was once again

going to be working at the hospital. This exchange occurred immediately following roll call, when officers received their posts for the tour. The most logical explanation for why Respondent had such a vivid memory of these events is that something notable did occur. I find that the preponderance of the credible evidence shows that Respondent, frustrated at being given a task he did not want to perform by Sergeant Alvarado, voiced those feelings by calling him a “clown” to another sergeant with whom he had a friendly, joking relationship. Accordingly, I find Respondent Guilty of Specification 2.

July 25, 2023

Police Officer Perales took the stand and gave a straightforward, unembellished version of the events of July 25, 2023, which was corroborated by Police Officer Pachot’s official interview. Neither officer had an interest in the outcome of these proceedings, and I credit their statements. Both officers recounted that Respondent was frustrated about receiving a Command Discipline. They each described talking about the imminent adjudication and the options available to the officers. Police Officer Perales testified that the tone and content of the conversation shifted each time Inspector Mascia came into the hallway. The two officers agreed that no other people, supervisors or not, were in the hall and they each recalled Respondent complaining loudly about the poor quality of supervision in the Precinct and the reference to “little dick” energy or status, culminating with statements about punching people.

Inspector Mascia took the stand and gave a version of events which was consistent with that of Police Officers Perales and Pachot. He admitted that the first time he passed the group, he could not hear their conversation. It was only when he walked by the second time that Inspector Mascia heard Respondent talking about poor leadership and then saying something about, “a lot of little dick energy and I’m going to start punching people in the face.” I credit his testimony, in

particular his explanation that his decision to suspend Respondent was based more on his concerns about sending an officer out on patrol who had made statements threatening violence, rather than Respondent's complaints about supervision.

In the course of his testimony, Respondent admitted that he complained about supervision in the 41st Precinct, using the term "little dick energy" and exclaiming, "That is why people get punched in the face." He asserted that these statements were simply general complaints, not specifically referencing any particular supervisor nor were they not directed at Inspector Mascia. Indeed, Respondent alleged that he was not present when Inspector Mascia walked by the first time and did not see him exit the Detective Squad as he was venting. Although he did admit to complaining about "the CO," Respondent's narrative appeared to be designed to deny responsibility for his misconduct and limit his culpability by making it appear that he was unaware of the presence of Inspector Mascia. Respondent's version of events was directly contradicted by all three of the other witnesses, who agreed that Respondent was present both times the Inspector passed by and that there were no other supervisors present who he could have been referring to. In addition, Police Officer Perales and Police Officer Pachot each stated that Respondent only made the offending comments when the Inspector was present. I find that the Department has proven by a preponderance of the credible evidence that Respondent made discourteous statements directed at Inspector Mascia and that he is Guilty of Specification 1.

Specification 3: Late Report

Respondent is charged with and has pled guilty to arriving an hour late to his muster location for the Puerto Rican Day Parade on June 11, 2023. Accordingly, I find Respondent Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 5, 2017, has been the subject of prior formal discipline. In the instant matter, he has been found guilty of being discourteous to two supervisors in two separate incidents which occurred within two weeks of each other. In addition, in accordance with his plea, he is found guilty of arriving late to the Puerto Rican Day Parade Detail. The Department Advocate has recommended that Respondent forfeit thirty (30) suspension days, already served, and that one year of dismissal probation be imposed. I agree with that recommendation.

Each of these instances of discourtesy stemmed from Respondent being frustrated, in one case with his assignment for the day, in the other with a punishment he felt was unfair. In many cases, a subordinate acts discourteously to a supervisor in the context of a disagreement over an instruction given by the supervisor. However, in each of these incidents, Respondent spontaneously made verbal attacks, of a personal nature, against his bosses in the presence of other members of service. Even if Respondent felt that he had been treated unfairly, there are other avenues to make complaints, and there is no justification for making these types of immature and rude remarks, especially in a paramilitary setting. Respondent's loss of temper,

occurring twice in close proximity to each other, created a situation in which his superiors had no choice but to address the situation through formal discipline.

Respondent argued for a lower penalty and submitted a character letter from his current sergeant in the 67th Precinct. Sergeant Destefano described Respondent as hard-working and dedicated. He praised Respondent's work ethic and commitment to the well-being of the community. I have no reason to doubt his sincerity and was encouraged to receive this favorable review of Respondent's work. I am hopeful that it represents a positive turning point in his career. However, it does not excuse the misconduct committed in this matter. Police work is stressful; officers are subject to strict rules about their conduct and are often required to perform unpleasant duties. The tribunal recognizes that complaining amongst colleagues about working conditions, discipline, and supervisors is not unusual. However, the NYPD is a paramilitary organization with a rank structure, which provides clear guidance to ensure that the day-to-day operations run smoothly.

The Matrix does not directly address charges of a subordinate being discourteous to a supervisor. The penalty range for conduct prejudicial to the good order and efficiency of the Department includes a mitigated penalty of training through an aggravated penalty of termination. The forfeiture of fifteen (15) suspension days, to run consecutively, for each incidence of discourtesy fairly addresses the serious nature of these incidents and would be appropriate for this type of misconduct. However, Respondent has a prior disciplinary history. He previously pled guilty to Computer Misuse, Failing to Comply with a Lawful Order and Making a Misleading Statement during an official Department interview in a 2020 incident. In that case, he was suspended for thirty (30) days and forfeited an additional thirty (30) vacation days. Under the standard of progressive discipline set forth in the Matrix, prior misconduct that

resulted in a penalty of more than fifteen (15) days will result in an increased penalty for subsequent misconduct. "The second incident involving the same misconduct or misconduct carrying an equal or greater presumptive penalty than the prior act of misconduct, shall result in a penalty increase to 20-30 days and Dismissal Probation." (Matrix at p. 12) Therefore, a penalty which includes dismissal probation is appropriate here. Hopefully, a period of monitoring will encourage Respondent to be more mindful of his behavior and help ensure that he does not engage in further misconduct.

With regard to Specification 3, arriving late to the Puerto Rican Day Parade detail, the tribunal recommends the loss of one (1) penalty day, to run concurrently with Specifications 1 and 2.

Based on the foregoing, I recommend that Respondent forfeit a total of thirty (30) suspension days, already served, with the restoration of four (4) suspension days previously served,⁴ and that he be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

APPROVED

JAN 21 2026
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Anne E. Stone

Anne E. Stone
Assistant Deputy Commissioner Trials

⁴ Section 14-115(a) of the Administrative Code of the City of New York provides: "The commissioner shall have power, in his or her discretion, on conviction by the commissioner, or by any court or officer of competent jurisdiction, of a member of the force of any . . . violation of rules . . . or conduct unbecoming an officer, or any breach of discipline, to punish the offending party by . . . suspension, without pay during such suspension . . . but no more than thirty days' salary shall be forfeited or deducted for any offense." Additionally, New York State Civil Service Law Section 75(3-a) specifies that "Pending the hearing and determination of charges of incompetency or misconduct, a police officer employed by the police department of the city of New York may be suspended without pay for a period not exceeding thirty days."



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER LATEEF STINSON
TAX REGISTRY NO. 964300
DISCIPLINARY CASE NO. C-031595

Respondent was appointed to the Department on July 5, 2017. On his three most recent annual performance evaluations, he was twice rated “Exceptional” for 2023 and 2024, and once rated “Exceeds Expectations” for 2022. He has been awarded two medals for Meritorious Police Duty and two medals for Excellent Police Duty.

In January 2023, Respondent negotiated a penalty of 30 vacation days and 30 suspension days without pay after pleading guilty to (i) conducting eleven computer inquiries unrelated to official Department business, (ii) failing to comply with a lawful order to not discuss the contents of his official Department interview, and (iii-iv) wrongfully making misleading statements during an official Department interview regarding his knowledge and/or possession of an image of a Command Discipline log and having permission to view an arrest report prepared by another officer. In connection with this case, Respondent was placed on Level 1 Discipline monitoring in February 2020; that monitoring remains in effect to date.

In connection with the instant matter, Respondent was suspended without pay from July 25, 2023, through August 27, 2023.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials